

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Justin Huang	Team: Squad #04	CCRB Case #: 202102041	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 03/22/2021 2:23 PM	Location of Incident: East 167th Street and Boston Road	18 Mo. SOL 9/22/2022	Precinct: 42		
Date/Time CV Reported Mon, 03/22/2021 2:55 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 03/30/2021 11:17 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Emmanuel Guerrero	01709	951795	042 PCT
2. LT Michael Pomerantz	00000	947364	042 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Emmanuel Guerrero	Abuse: Police Officer Emmanuel Guerrero stopped § 87(2)(b)	A . Substantiated
B . LT Michael Pomerantz	Abuse: Lieutenant Michael Pomerantz stopped § 87(2)(b)	B . Substantiated
C . PO Emmanuel Guerrero	Abuse: Police Officer Emmanuel Guerrero questioned § 87(2)(b)	C . Substantiated
D . PO Emmanuel Guerrero	Abuse: Police Officer Emmanuel Guerrero threatened to arrest § 87(2)(b)	D . Unsubstantiated
E . PO Emmanuel Guerrero	Discourtesy: Police Officer Emmanuel Guerrero spoke discourteously to § 87(2)(b)	E . Unsubstantiated
F . PO Emmanuel Guerrero	Abuse: Police Officer Emmanuel Guerrero failed to provide § 87(2)(b) with a business card.	F . Substantiated
G . LT Michael Pomerantz	Abuse: Lieutenant Michael Pomerantz failed to provide § 87(2)(b) with a business card.	G . Substantiated
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On March 22, 2021, § 87(2)(b) filed this complaint with IAB via their call processing system. This complaint was received by the CCRB on March 30, 2021. The IAB log number is § 87(2)(b).

On March 22, 2021, at approximately 2:23PM, Lieutenant Michael Pomerantz and Police Officer Emmanuel Guerrero, both of the 42nd Precinct, stopped § 87(2)(b) at East 167th Street and Boston Road in the Bronx (**Allegations A-B: Abuse of Authority, Substantiated**). PO Guerrero asked § 87(2)(b) what he was drinking (**Allegation C: Abuse of Authority, Substantiated**). PO Guerrero told § 87(2)(b) “You know I’m going to take you to jail if I find anything” (**Allegation D: Abuse of Authority, Unsubstantiated**). PO Guerrero also told § 87(2)(b) “No bull crap or nothing, I’m taking you in” (**Allegation E: Discourtesy, Unsubstantiated**). PO Guerrero and Lt. Pomerantz failed to produce a business card to § 87(2)(b) (**Allegations F-G: Abuse of Authority, Substantiated**). § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

There were no arrests made or summons issued as a result of this incident.

The CCRB received negative results for BWC regarding this incident (**BR01-02**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Emmanuel Guerrero stopped § 87(2)(b)

§ 87(2)(b)

Allegation (B) Abuse of Authority: Lieutenant Michael Pomerantz stopped § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Emmanuel Guerrero questioned § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) (**BR03**) stated that he was walking home while carrying a water bottle full of Pepsi in his pocket and occasionally taking the bottle out of his pocket to drink from it. § 87(2)(b) was crossing East 167th Street at the intersection of East 167th Street and Boston Road when a marked car stopped in the middle of the intersection on Boston Road. Lt. Pomerantz and PO Guerrero got out of the marked car and walked toward § 87(2)(b). PO Guerrero shouted at § 87(2)(b) “Hey you, we want to talk to you. I know there’s something in there.” Lt. Pomerantz told § 87(2)(b) “Take your hands out of your pockets.” § 87(2)(b) responded, “It’s Pepsi.” PO Guerrero said, “What are you drinking? I know there’s something in there, I know that’s alcohol. I know that’s not just soda in that bottle.” PO Guerrero then asked § 87(2)(b) if he could feel his pockets. § 87(2)(b) stated that he did not consent to a search. PO Guerrero asked § 87(2)(b) if he had identification. § 87(2)(b) stated that he did and gave his identification to him. PO Guerrero ran a warrant search and then returned the identification to § 87(2)(b). PO Guerrero asked § 87(2)(b) a second time if he could frisk him. § 87(2)(b) stated that he did not consent to a frisk or a search.

Lt. Pomerantz and PO Guerrero did not remember the incident in question (**BR04-05**).

The CCRB received a warrant audit (**BR06**) showing PO Guerrero conducting a warrant search on March 22nd, 2021, at 2:26PM, for § 87(2)(b) and a date of birth § 87(2)(b). The 42nd Precinct Resource Recap Log (**BR07**) shows that PO Guerrero was partnered with Lt. Pomerantz and that they responded to incidents at 1:56PM and 3:06PM. This incident falls in-

between these two timestamps.

The CCRB submitted two BWC requests, both of which returned negative results (**BR01-02**).

NYPD Patrol Guide Procedure 212-11(**BR08**) defines a level 3 encounter as any encounter between a civilian and a uniformed member of the service in which a reasonable person would not feel free to disregard the officer and walk away. A stop may be conducted only when a police officer has an individualized reasonable suspicion that the person stopped has committed, is committing, or is about to commit a felony or Penal Law misdemeanor.

According to People v. DeBour, 40 N.Y. 2d 210 (**BR09**), officers conducting a level 3 stop must have a reasonable suspicion of criminality and can pursue and forcibly detain if necessary.

In United States vs. Pope (**BR10**), an order to take one's hands out of pockets constitutes a search under the Fourth Amendment and is justified when there exists probable cause of wrongdoing and may include exigent circumstances.

Although PO Guerrero and Lt. Pomerantz did not recall this incident, the investigation established that PO Guerrero and Lt. Pomerantz stopped § 87(2)(b) based on the positive warrant audit search conducted by PO Guerrero. § 87(2)(b) filed this complaint with IAB following the incident, was consistent throughout his statements, and he provided accurate descriptions of the subject officers. § 87(2)(b) stated that he was walking down the sidewalk and drinking from a water bottle full of Pepsi at the time he was stopped. § 87(2)(g)

It is recommended that **Allegations A, B, and C** be **substantiated**.

Allegation (D) Abuse of Authority: Police Officer Emmanuel Guerrero threatened to arrest

§ 87(2)(b)

Allegation (E) Discourtesy: Police Officer Emmanuel Guerrero spoke discourteously to

§ 87(2)(b)

§ 87(2)(b) (**BR03**) stated that after he gave his identification to PO Guerrero, PO Guerrero said, "You know I'm going to take you to jail if I find anything. Let me know now...If I find anything I'm taking you in. No bull crap or nothing, I'm taking you in." PO Guerrero stated that § 87(2)(b) would be arrested if he lied to him. § 87(2)(b) responded that he did not have any warrants on him. PO Guerrero said, "Tell me now if you have anything, because we're going to take you down to the station and then search you there. We're going to find out everything there."

Lt. Pomerantz and PO Guerrero did not remember the incident in question (**BR04-05**).

§ 87(2)(g)

It is recommended that **Allegations D and E** be closed as **unsubstantiated**.

Allegation (F) Abuse of Authority: Police Officer Emmanuel Guerrero failed to provide
§ 87(2)(b) **with a business card.**

Allegation (G) Abuse of Authority: Lieutenant Michael Pomerantz failed to provide § 87(2)(b) **with a business card.**

§ 87(2)(b) (**BR03**) did not receive any kind of documentation or business cards from the officers.

Lt. Pomerantz and PO Guerrero did not remember the incident in question (**BR04-05**).

New York City Administrative Code 14-174 (**BR11**) states that officers conducting a law enforcement activity must offer a business card if said activity does not result in an arrest or summons.

NYPD Patrol Guide 212-11 (**BR08**) states that officers conducting a level 3 stop must offer their business cards upon conclusion of the stop.

§ 87(2)(g)

It is therefore recommended that **Allegations F and G** be **substantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR15**).
- PO Guerrero has been a member of service for ten years and has been a subject in four CCRB complaints and sixteen allegations, none of which were substantiated. § 87(2)(g)
- Lt. Pomerantz has been a member of service for thirteen years and has been a subject in nineteen CCRB complaints and 61 allegations, of which two have been substantiated (**BR17**):
 - Case # 201200816 involved an allegation of a frisk. The Board recommended instructions and the NYPD imposed instructions.
 - Case # 201801182 involved an allegation of a search of persons. The Board recommended no penalty, and the NYPD imposed no penalty.
 - § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On February 26th, 2022, a FOIL request was submitted to the Office of the Comptroller. Results will be attached upon receipt (**BR18**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: _____ 4 _____

Investigator: _____ Justin Huang _____ Investigator Huang _____ 03/11/2022 _____
Signature Print Title & Name Date

Squad Leader: _____ Raquel Velasquez _____ IM Raquel Velasquez _____ 03/11/2022 _____
Signature Print Title & Name Date

Reviewer:

Signature

Print Title & Name

Date